

DISTRICT COURT ADAMS County, Colorado Court Address: 1100 JUDICIAL CENTER DRIVE Brighton, CO 80601 MICHELLE CLAUDINE FORBES, ANGUS JOHN FORBES PHOEBE FORBES AND IAN FORBES, PLAINTIFFS Vs. Officer MICHAEL DONNELLON, OFFICER A. SANDOVAL, TOWN OF BENNETT COLORADO, ADAMS COUNTY SHERIFF DEPARTMENT AND OTHER AS YET UNNAMED OFFICERS, ADAMS COUNTY COLORADO, DEFENDANTS Attorney or Party Without Attorney: DOUGLAS POOLEY 8199 S. MADISON WAY CENTENNIAL CO 80122 Phone Number: 303-620-9400 FAX Number: E-mail: DOPOOLAW@AOL.COM Atty. Reg. #: 9141	DATE FILED: June 4, 2015 11:58 AM FILING ID: 951DAC4991EB4 CASE NUMBER: 2015CV30929 ↑ COURT USE ONLY ↑ Case Number: Div.: Ctrm:
COMPLAINT	

COMES NOW PLAINTIFFS by and through undersigned counsel, and respectfully complains against Defendants as follows.

PARTIES JURISDICTION AND VENUE

1. Plaintiff, Phoebe Forbes, a minor, is and was at all times relevant to this Complaint a citizen of the State of Colorado, with an address of 2155 Eastover St., Bennett, CO 80102.
2. Plaintiff, Ian Forbes,, is and was at all times relevant to this Complaint a citizen of the State of Colorado, with an address of 2155 Eastover St., Bennett, CO 80102.
3. Plaintiff, Angus Forbes is and was at all times relevant to this Complaint a citizen of the State of Colorado, with an address of 2155 Eastover St., Bennett, CO 80102.
4. Plaintiff, Michelle Forbes, is and was at all times relevant to this Complaint a citizen of the State of Colorado, with an address of 2155 Eastover St., Bennett, CO 80102.

5. Plaintiff's next friend, Angus and Michelle Forbes, are Plaintiffs Phoebe and Ian's parents and is and was at all times relevant to this Complaint a citizen of the State of Colorado, with an address of 2155 Eastover St., Bennett, CO 80102.
6. Defendant Adams County, Colorado is and was at all times relevant to this Complaint a county is and was at all times relevant to this Complaint a county Government of the State of Colorado, having offices and a business address at 4430 South Adams County Parkway, Brighton, Colorado 80601.
7. Defendant the Adams County Sheriff's Department is and was at all times relevant to this complaint an agency of Adams County, Colorado, having offices and a business address of 332 N. 19th Ave, Brighton, CO 80601.
8. Defendant the Town of Bennett is and was at all times relevant to this Complaint a City Government of the State of Colorado, with offices at 355 4th st. Bennett CO.
9. Defendant Michael Donnellon is and was at all times relevant to this Complaint the Sheriff of Adams County, Colorado, a constitutional officer of that county, acting officially and individually within the scope of his duties and employment, under color and authority of state, and in his official capacity.
10. Defendant Officer A. Sandoval is and was at all times relevant to this Complaint the Sheriff of Adams County, Colorado, a constitutional officer of that county, acting officially and individually within the scope of his duties and employment, under color and authority of state, and in his official capacity.
11. Defendants, Adams County, Colorado; Defendant Michael Donnellon, Officer Sandoval and the Adams County Sheriff's Office, and, are public entities or employees and fall within the purview of the Colorado Governmental Immunity Act, §24-10-101, *Et seq.* C.R.S. Plaintiff has complied with the provisions of §24-10-101, C.R.S.
12. The town of Bennett contracts with Adams County Sheriff Department for law enforcement services.
13. This Court has jurisdiction of claims including claims brought under 42 U.S.C. § 1983.
14. Venue is proper in Adams County, Colorado because the acts and omissions alleged herein occurred in Adams County, Colorado, and/or Defendants are employed by entities of Adams County.

GENERAL ALLEGATIONS

15. On or about April 1, 2014, Plaintiff Phoebe Forbes was physically assaulted by another individual. Deputy Donnellon was assigned to investigate the incident.
16. Between April 4, 2014 and June 4, 2014, Plaintiff Angus Forbes made numerous complaints to both the Adams County Sheriff and Adams County District Attorney regarding Donnellon's failure to contact the family and failure to properly investigate the incident.
17. On June 4, 2014, Plaintiffs Angus (age 73), Michelle (age 44) and Phoebe Forbes (age 16) appeared in Bennett Municipal Court regarding the charge(s) against the perpetrator of the assault on Phoebe. The matter was continued when the perpetrator of the assault, Alec Gentry, was arrested on another unrelated matter.
18. As Plaintiffs were leaving the courthouse in their vehicle, they were flagged down by another deputy, later identified as A. Sandoval, who directed Angus Forbes to exit the vehicle to talk to Sandoval.
19. As Angus Forbes approached the Sandoval vehicle, Donnellon appeared from behind the vehicle.
20. Donnellon and Sandoval then proceeded to assault Angus Forbes twisting his arms behind his back such that bruises and extreme pain were inflicted, while at the same time, slamming his face and head against the patrol car. Donnellon shouted at Angus Forbes that Forbes was under arrest.
21. As Angus Forbes was being assaulted by the deputies, Plaintiff Michelle Forbes screamed at them to stop assaulting her husband to no avail. As a result thereof she was wrongfully cited for disturbing the peace. Angus was wrongfully cited for resisting arrest.
22. Plaintiff Angus Forbes sustained physical bodily injury and psychological injury as a result of this assault as well as damage to his reputation, as well as other injuries and damages. Michelle Forbes sustained psychological injury as well as damage to reputation as well as other injuries and damages.
23. Subsequent to this incident, Plaintiff Angus Forbes made numerous complaints to numerous local, county and state officials regarding these actions.
24. Subsequent thereto, Deputy Donnellon engaged in a pattern of harassment of all of the Plaintiffs, making routine bogus traffic stops of Phoebe Forbes, Ian Forbes and others, with the intent to bother, harass and intimidate Plaintiffs.

FIRST CLAIM FOR RELIEF
(Deputy Michael Donnellon)

Deprivation of Right To Life, Liberty, and Personal Security Under 42 U.S.C. § 1983 Fourth Amendment Violation, Illegal Seizure, Excessive Force

25. Plaintiff incorporates all other paragraphs of this Complaint for purposes of this claim.
26. By his actions towards Plaintiffs, Defendant Deputy Donellon intentionally, in direct contravention of Plaintiff's right to be free of unreasonable seizures of his person or property by the State, and without probable cause, unreasonably seized Plaintiff's person by employing excessive force and subjecting him to serious bodily injury.
27. Defendant Deputy Donellon, as a Peace Officer Standards and Training (POST) certified law enforcement officer, was aware of Plaintiff's right to be free from unreasonable seizures.
28. Defendant Donnellon's subsequent harassment of Plaintiffs by use of bogus, illegal traffic stops violated Plaintiffs' rights to be free from illegal arrest, and or contact by police.

SECOND CLAIM FOR RELIEF

(All Defendants)

Deprivation of Right Liberty, and Personal Security Under 42 U.S.C. § 1983 Violation Illegal Seizure and Fourteenth Amendment Violation Due Process, State Created Danger

29. Plaintiff incorporates all other paragraphs of this Complaint for purposes of this claim.
30. By their actions Deputies Donnellon and Sandoval, state officials, created an extremely dangerous situation. They then acted with deliberate, willful and reckless indifference to Plaintiff's safety and physical well being when they failed to protect Plaintiff from the resulting danger.
31. Defendants Deputy Donellon and Sandoval, as a Peace Officer Standards and Training (POST) certified law enforcement officer, was aware of Plaintiff's right to be free from unreasonable seizures and to his right to Due Process.
32. The town of Bennett owed a duty to Plaintiffs to adequately protect its citizens from violations of their rights by Adams County deputies, including but not limited to use of excessive force and illegal seizure and arrest pursuant to the fourteenth amendment.
33. The injuries suffered by Plaintiff, were a direct and foreseeable result of the danger manifested by Defendants deliberate, willful and reckless indifference to Plaintiff's safety.

THIRD CLAIM FOR RELIEF

(Adams County Sheriff Deputy A. Sandoval)

Deprivation of Right To Liberty, and Personal Security Under 42 U.S.C. § 1983, Fourth Amendment Illegal Seizure and Fourteenth Amendment Violation Due Process,

34. Plaintiff incorporates all other paragraphs of this Complaint for purposes of this claim.
35. By his actions towards Plaintiffs, Defendant Deputy Sandoval intentionally, in direct contravention of Plaintiff's right to be free of unreasonable seizures of his person or property by the State, and without probable cause, unreasonably seized Plaintiff's person by employing excessive force and subjecting him to serious bodily injury.
36. Defendant Deputy Sandoval, as a Peace Officer Standards and Training (POST) certified law enforcement officer, was aware of Plaintiff's right to be free from unreasonable seizures.

FOURTH CLAIM FOR RELIEF

Deprivation of Right To Liberty, and Personal Security Under 42 U.S.C. § 1983, Fourth Amendment Illegal Seizure and Fourteenth Amendment Violation Due Process, Failure to Properly Train or Supervise policymaking official

37. Plaintiff incorporates all other paragraphs of this Complaint for purposes of this claim.
38. At all times relevant to this action Adams County Sheriff, Michael McIntosh or Douglas N. Darr were the primary policy making official in the Adams County Sheriff's Department acting officially and individually within the scope of his duties and employment, under color and authority of state law, and in his official capacities.
39. That both Deputies Donellon and Sandoval were inadequately trained and supervised was apparent. The inadequate training and supervision were systemic and Sheriffs Darr or McIntosh were deliberately indifferent to training deficiencies and the resulting risks to the public in general and Plaintiff in particular.
40. As a direct and proximate result of Sheriffs Darr or McIntosh indifference Plaintiff's constitutional right to be free from unreasonable physical seizures and his constitutional right to Due Process were violated.

FIFTH CLAIM FOR RELIEF

(All Defendants)

Deprivation of Right To Life, Liberty, and Personal Security Under 42 U.S.C. §1983, Fourteenth Amendment Violation Due Process, Special Relationship.

41. Plaintiff incorporates all other paragraphs of this Complaint for purposes of this claim.
42. Plaintiff was in the custody of or otherwise restrained by the Adams County, its Sheriff and the various deputies when Adams County Sheriff's Deputies ordered the vehicle in which Plaintiff was riding to the curb then directed the occupants to exit the vehicle. A special relationship between Plaintiffs and the Defendants was created.
43. Thereafter Deputy Donnellon's conduct in assaulting Plaintiff Angus Forbes created a dangerous condition. Under the totality of the circumstances Deputy Donnellon's conduct was outrageous and shocked the conscience.
44. Deputy Sandoval failed to protect Plaintiff from the dangerous condition that resulted. Because of the deputies' order Plaintiff was hindered in his ability to protect himself.
45. The arrest and seizure of Plaintiff Angus Forbes was accompanied by the use of excessive force by the Deputies more than was required to subdue and arrest a 73 year old unarmed man.
46. The injuries suffered by Plaintiff, were a direct and foreseeable result of the danger manifested by Donnellon's assault and Deputy Sandoval's failure to protect Plaintiff.

SIXTH CLAIM FOR RELIEF
(Deputies Sandoval and Donnellon)
Negligence

47. Plaintiff incorporates all other paragraphs of this Complaint for purposes of this claim.
48. Deputies Sandoval and Donnellon conduct constituted negligence.
49. The injuries suffered by Plaintiff, were a direct and foreseeable result of the danger manifested by the Deputies negligence.

SEVENTH CLAIM FOR RELIEF
(Deputy Donnellon)
Outrageous Conduct

50. Plaintiff incorporates all other paragraphs of this Complaint for purposes of this claim.

51. Deputy Donnellon's conduct in both arresting Plaintiffs without probable cause, use of excessive force and subsequent harassment of Plaintiffs was outrageous.
52. The injuries suffered by Plaintiff, were a direct and proximate result of the danger manifested by the outrageous conduct.

WHEREFORE, Plaintiffs respectfully requests that this Court enter judgment in their favor and against the Defendants, and grant:

- a. Compensatory and consequential damages, including damages for emotional distress, loss of reputation, humiliation, loss of enjoyment of life, and other pain and suffering on all claims allowed by law in an amount to be determined by a finder of fact;
- b. All economic losses on all claims allowed by law;
- c. Punitive damages on all claims allowed by law and in an amount to be determined at trial;
- d. Attorney fees as provided by law;
- e. The costs associated with the filing and prosecution of this action, including expert witness fees;
- f. Pre- and post-judgment interest at the lawful rate; and
- g. Any other relief as allowed by law; and
- h. Any further relief that this court deems appropriate, and
- i. Plaintiffs request trial by Jury on all issues as appropriate.

Respectfully submitted

/s/
Douglas Pooley
Attorney for Plaintiffs